

Agent 8 — Legal / Regulatory Background Evidence

Prepared: 2026-07-02 (all pages accessed 2026-07-02 between 01:30 and 01:45 UTC). Scope: PRIMARY/AUTHORITATIVE sources only — FCA Register, FCA Handbook, FCA policy statement PS22/9, ICO guidance, legislation.gov.uk, BAILII, and the UK trade mark register (via TMview, because trademarks.ipso.gov.uk was bot-blocked — see Access blockers).

Purpose: neutral background context on (a) who the two firms are on the official register, and (b) why misdirected contacts, claims, complaints, payments and personal data are capable of being material under FCA rules, data-protection law and trade-mark/passing-off law. This report is context, not confusion evidence, and is deliberately short on legal analysis.

Summary

- **FRN 842275 is "Prima Financial Services Ltd"** (the broker). FCA Register confirms: authorised since 02/09/2019; principal place of business 21 Bury New Road, Prestwich, Manchester, Bury, M25 9JZ; phone +44 161 826 1620; email info@primainsurance.co.uk; website primainsurance.co.uk; Companies House no. 11940805; complaints contact "Anthony Phillip Geller" at the same address/number (anthony@primainsurance.co.uk). Permitted activities include insurance distribution (retail non-investment insurance) and it **can hold and control client money** (LEG-01).
- **The broker's registered/trading names on the FCA Register include "Prima Insurance Brokers"** (trading name effective 17 May 2019 — i.e. pre-dating the insurer's UK launch), plus Prima Life (17 May 2019), Prima Healthcare (09 Sept 2019), Clapton / Clapton Insurance Brokers (2023), and previous names Prima Commercial, Prima Private Clients, Prima Health, Sunshine Life (LEG-02).
- **FRN 1031191 is "PRIMA SUBSIDIARY LTD"** (the insurer's UK distribution entity). FCA Register confirms: authorised since 18/08/2025; trading name simply **"Prima"** (effective 24 Mar 2025); address 30 Stamford Street, London SE1 9LS; phone +44 20 3318 9745; email help@helloprima.co.uk; website www.helloprima.co.uk; Companies House no. 12728615; complaints contact "Beata Ferenc". It **cannot hold or control client money**; insurance distribution is retail non-investment insurance; credit broking is limited to premium-finance introductions (LEG-03).
- The register therefore shows **two unconnected authorised firms whose register names both reduce to "Prima ..."** — one trading as "Prima Insurance Brokers" (Manchester), the other trading as "Prima" (London). This is objective, primary-source context for why consumers searching "Prima insurance" may reach the wrong firm; it does not itself prove any confusion has occurred.
- **FCA Principle 7** (PRIN 2.1.1R): a firm "must pay due regard to the information needs of its clients, and communicate information to them in a way which is clear, fair and not misleading". For insurance distribution the same standard is a specific rule: **ICOBS 2.2.2R** (LEG-04, LEG-05).
- **Consumer Duty** (Principle 12 / PRIN 2A, made by PS22/9, in force for open products 31 July 2023): firms must avoid causing **foreseeable harm** (PRIN 2A.2.8R) — including harm arising "through its role in the distribution chain" (PRIN 2A.2.9R) — must communicate so customers can make "effective, timely and properly informed" decisions (PRIN 2A.5.3R), and must design **consumer support** so customers can use their product as reasonably anticipated without

unreasonable barriers (PRIN 2A.6.2R). Contactability and correct routing of claims/complaints sit squarely inside the consumer-support and consumer-understanding outcomes (LEG-06 to LEG-09).

- **DISP complaints rules:** firms must publish complaints-procedure information (DISP 1.2.1R); must send a final response within 8 weeks that signposts the Financial Ombudsman Service (DISP 1.6.2R); and where a complaint actually belongs to another firm, the receiving firm may forward it but must do so **promptly** and tell the complainant the other firm's contact details (DISP 1.7.1R). Misrouted complaints therefore consume regulatory time limits and depend on the wrong firm performing forwarding duties (LEG-10 to LEG-12).
- **ICO / UK GDPR:** a "personal data breach" is "a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, personal data" (UK GDPR Art. 4(12), quoted in ICO guidance). Customers misdirected to the wrong firm may disclose policy, claims, health, financial and payment data to an unintended recipient; each firm then holds personal data it has no business reason to hold, engaging the Art. 5(1)(f) integrity/confidentiality principle and ICO breach-assessment guidance (LEG-13).
- **Trade Marks Act 1994 s.10(2):** infringement includes use in trade of an identical/similar sign for identical/similar services where "there exists a likelihood of confusion on the part of the public, which includes the likelihood of association with the trade mark" (LEG-14). **Passing off** requires the "classical trinity" — goodwill, misrepresentation, damage (Reckitt & Colman v Borden [1990] UKHL 12, Lord Oliver) (LEG-15).
- **UK trade mark register (class 36):** the only live "Prima"-formative UK registrations for insurance services belong to **PRIMA ASSICURAZIONI S.P.A.** (Milan): "hello prima" UK00003664417, "HELLO PRIMA" UK00003664422, "prima +" UK00003664425 and "PRIMA+" UK00003664427 — all applied **05/07/2021**, registered class 36 ("Insurance services related to motor vehicles" for hello prima), expiry 05/07/2031 (LEG-16).
- **No UK trade mark containing "prima insurance" exists, and no mark owned by Prima Financial Services Ltd / Prima Insurance Brokers was found** in the UK register data. The broker's position (name use since 17 May 2019 per the FCA Register) would therefore rest on unregistered rights/passing off rather than registered marks; conversely the insurer's registered marks post-date the broker's recorded first trading-name use. This is recorded neutrally; it is a matter for lawyers, not a conclusion (LEG-17).
- **Honest gaps:** the UKIPO's own register site could not be captured (Cloudflare bot-block); TMview (official EUIPN tool carrying UKIPO-supplied data) was used instead and carries a "does not constitute official register" caveat. No FOS decision database or FCA enforcement search was in scope for this agent. Nothing in this report shows that either firm has breached any rule.

Findings

Note on categories: this agent's remit is background/context. Findings are tagged with the closest evidence category; most are context rather than direct confusion evidence, as stated in each "Notes" field.

LEG-01 — FCA Register entry, FRN 842275 (Prima Financial Services Ltd)

- **ID:** LEG-01
- **Category:** D (context — establishes identity/contact details of the broker; not itself confusion evidence)
- **Source/platform:** FCA Financial Services Register (register.fca.org.uk)

- **URL:** <https://register.fca.org.uk/s/firm?id=0010X00004UA7vEQAT> (found via <https://register.fca.org.uk/s/search?q=842275&type=Companies>)
- **Page title:** Prima Financial Services Ltd (FCA Register firm page)
- **Search query used:** register search "842275" (Firms)
- **Date/time accessed (UTC):** 2026-07-02 01:30–01:33
- **Exact quote/snippet:** "Prima Financial Services Ltd — Reference number: 842275 ... Status: Authorised — Since 02/09/2019 ... Address: 21 Bury New Road, Prestwich, Manchester, Bury, M25 9JZ, UNITED KINGDOM. Phone: +44 1618261620. Email: info@primainsurance.co.uk. Website: <http://www.primainsurance.co.uk/> ... Registered company number 11940805 ... Complain to the firm: Anthony Phillip Geller, 21 Bury New Road ... +44 1618261620, anthony@primainsurance.co.uk". Client money: "This firm can hold and can control client money". Insurance permissions (retail non-investment insurance) include "Advising on investments...", "Arranging (bringing about) deals in investments", "Assisting in the administration and performance of a contract of insurance", "Dealing in investments as agent", "Making arrangements with a view to transactions in investments"; also consumer credit "Credit Broking"; "This firm is able to undertake insurance distribution."
- **Screenshot filename:** 2026-07-02_fca-register_search-842275_results.png; 2026-07-02_fca-register_firm-842275_prima-financial-services.png; 2026-07-02_fca-register_firm-842275_expanded.png
- **HTML archive filename:** 2026-07-02_fca-register_firm-842275_prima-financial-services.html; 2026-07-02_fca-register_firm-842275_expanded.html
- **Relevance:** High
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** Confirms on the official register that 0161 826 1620 and primainsurance.co.uk belong to the broker (FRN 842275). The 0330 088 1135 number does not appear on the register entry. Also confirms FOS/FSCS protections apply to this firm's regulated activities.

LEG-02 — FRN 842275 trading names (including "Prima Insurance Brokers" since 17 May 2019)

- **ID:** LEG-02
- **Category:** D (context — name overlap between the two firms)
- **Source/platform:** FCA Financial Services Register
- **URL:** <https://register.fca.org.uk/s/firm?id=0010X00004UA7vEQAT> (Trading names section, expanded)
- **Page title:** Prima Financial Services Ltd
- **Search query used:** n/a (section expansion on firm page)
- **Date/time accessed (UTC):** 2026-07-02 01:33
- **Exact quote/snippet:** "This firm currently trades under 6 trading names." Current names: "Clapton Insurance Brokers — Trading — 03 Aug 2023; Clapton — Trading — 23 Jul 2023; Prima Healthcare — Trading — 09 Sept 2019; Prima Financial Services Ltd — Registered — 02 Sept 2019; **Prima Insurance Brokers — Trading — 17 May 2019**; Prima Life — Trading — 17 May 2019". Previous names: "Sunshine Life (11 Feb 2020–02 Feb 2023); Prima Commercial (11 Sept 2019–08 Jul 2021); Prima Commercia (09–11 Sept 2019); Prima Private Clients (09 Sept 2019–02 Feb 2023); Prima Health (17 May 2019–02 Feb 2023)".
- **Screenshot filename:** 2026-07-02_fca-register_firm-842275_expanded.png

- **HTML archive filename:** 2026-07-02_fca-register_firm-842275_expanded.html
- **Relevance:** High
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** Official-register record that the broker has traded as "Prima Insurance Brokers" since 17 May 2019 — earlier than the insurer's UK trade mark filings (05/07/2021, LEG-16), its FCA trading name "Prima" (24 Mar 2025) and its authorisation (18/08/2025, LEG-03). This supports background chronology only.

LEG-03 — FCA Register entry, FRN 1031191 (PRIMA SUBSIDIARY LTD, trading as "Prima")

- **ID:** LEG-03
- **Category:** D (context — establishes identity/contact details of the insurer entity)
- **Source/platform:** FCA Financial Services Register
- **URL:** <https://register.fca.org.uk/s/firm?id=001Sk00000Z0ACwIAN> (found via <https://register.fca.org.uk/s/search?q=1031191&type=Companies>)
- **Page title:** PRIMA SUBSIDIARY LTD
- **Search query used:** register search "1031191" (Firms)
- **Date/time accessed (UTC):** 2026-07-02 01:31–01:34
- **Exact quote/snippet:** "PRIMA SUBSIDIARY LTD — Reference number: 1031191 ... Status: Authorised — Since 18/08/2025 ... Address: 30 Stamford Street, London, SE1 9LS ... Phone: +442033189745. Email: help@helloprima.co.uk. Website: www.helloprima.co.uk ... Registered company number 12728615". Trading names: "PRIMA SUBSIDIARY LTD — Registered — 18 Aug 2025; **Prima — Trading — 24 Mar 2025**". "Complain to the firm: Beata Ferenc, 30 Stamford Street ... +442033189745, help@helloprima.co.uk". Client money: "This firm cannot hold and cannot control client money." Consumer credit limitation: "Limited to the sale of Insurance: Limited to effecting introductions to lenders who enter into credit agreements for the payment of insurance premiums...". Insurance permissions (retail non-investment insurance): "Arranging (bringing about) deals in investments; Dealing in investments as agent; Making arrangements with a view to transactions in investments"; "This firm is able to undertake insurance distribution."
- **Screenshot filename:** 2026-07-02_fca-register_search-1031191_results.png; 2026-07-02_fca-register_firm-1031191_prima-subsubsidiary.png; 2026-07-02_fca-register_firm-1031191_expanded.png
- **HTML archive filename:** 2026-07-02_fca-register_firm-1031191_prima-subsubsidiary.html; 2026-07-02_fca-register_firm-1031191_expanded.html
- **Relevance:** High
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** On the official register the insurer's UK entity trades under the bare name "Prima". Its registered correct contact route is +44 20 3318 9745 / help@helloprima.co.uk. Neither 0330 088 1135 nor 0161 826 1620 appears on this entry. The firm page also carries an FCA "Restrictions / suspensions" notice flag pointing to standard requirements (canvassing off trade premises; CBTL), not misconduct findings.

LEG-04 — FCA Principle 7 and Principle 12 (PRIN 2.1.1R)

- **ID:** LEG-04
- **Category:** M (regulatory context)
- **Source/platform:** FCA Handbook

- **URL:** <https://www.handbook.fca.org.uk/handbook/PRIN/2/1.html>
- **Page title:** FCA Handbook - PRIN 2.1 The Principles
- **Search query used:** direct citation
- **Date/time accessed (UTC):** 2026-07-02 01:34
- **Exact quote/snippet:** "7 Communications with clients — A firm must pay due regard to the information needs of its clients, and communicate information to them in a way which is clear, fair and not misleading." "12 Consumer Duty — A firm must act to deliver good outcomes for retail customers."
- **Screenshot filename:** 2026-07-02_fca-handbook_prin-2-1_principles.png
- **HTML archive filename:** 2026-07-02_fca-handbook_prin-2-1_principles.html
- **Relevance:** Medium (context)
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** Baseline standard for all firm communications. Per PS22/9, for retail customers within the Consumer Duty's scope, Principle 12/PRIN 2A applies in place of Principles 6 and 7 and sets a higher standard. Relevance here: if a firm's published contact details, branding or web presence lead customers to the wrong firm, the adequacy/clarity of customer communications is the applicable regulatory lens.

LEG-05 — ICOBS 2.2.2R: clear, fair and not misleading (insurance-specific rule)

- **ID:** LEG-05
- **Category:** M (regulatory context)
- **Source/platform:** FCA Handbook
- **URL:** <https://www.handbook.fca.org.uk/handbook/ICOBS/2/2.html>
- **Page title:** FCA Handbook - ICOBS 2.2 Communications to clients and financial promotions
- **Search query used:** direct citation
- **Date/time accessed (UTC):** 2026-07-02 01:35
- **Exact quote/snippet:** "ICOBS 2.2.2 R — When a firm communicates information, including a financial promotion, to a customer it must ensure that it is clear, fair and not misleading. [Note: article 17(2) of the IDD]"
- **Screenshot filename:** 2026-07-02_fca-handbook_icobs-2-2_communications.png
- **HTML archive filename:** 2026-07-02_fca-handbook_icobs-2-2_communications.html
- **Relevance:** Medium (context)
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** The insurance-conduct rule mirroring Principle 7. Ambiguous brand names or contact routes in customer-facing material are assessed against this standard.

LEG-06 — Consumer Duty cross-cutting rule: avoid foreseeable harm (PRIN 2A.2.8R–2A.2.9R)

- **ID:** LEG-06
- **Category:** M (regulatory context)
- **Source/platform:** FCA Handbook
- **URL:** <https://www.handbook.fca.org.uk/handbook/PRIN/2A/2.html>
- **Page title:** FCA Handbook - PRIN 2A.2 Cross-cutting obligations

- **Search query used:** direct citation
- **Date/time accessed (UTC):** 2026-07-02 01:35
- **Exact quote/snippet:** "PRIN 2A.2.8 R — A firm must avoid causing foreseeable harm to retail customers." "PRIN 2A.2.9 R — Foreseeable harm may be caused by both act and omission, in a firm's direct relationship with a retail customer or through its role in the distribution chain even where another firm in that chain also contributes to the harm."
- **Screenshot filename:** 2026-07-02_fca-handbook_prin-2a-2_cross-cutting.png
- **HTML archive filename:** 2026-07-02_fca-handbook_prin-2a-2_cross-cutting.html
- **Relevance:** High (context)
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** If it is foreseeable that customers cannot find or reach the correct firm (e.g. for claims, cancellations or complaints) and suffer harm (missed claims notifications, missed cancellation windows, payments to the wrong entity), the Duty's foreseeable-harm rule is the relevant standard — including harm arising via distribution chains (aggregators). Context only; no breach is asserted.

LEG-07 — Consumer Duty: consumer understanding outcome (PRIN 2A.5.3R)

- **ID:** LEG-07
- **Category:** M (regulatory context)
- **Source/platform:** FCA Handbook
- **URL:** <https://www.handbook.fca.org.uk/handbook/PRIN/2A/5.html>
- **Page title:** FCA Handbook - PRIN 2A.5 Consumer Duty: retail customer outcome on consumer understanding
- **Search query used:** direct citation
- **Date/time accessed (UTC):** 2026-07-02 01:43
- **Exact quote/snippet:** "PRIN 2A.5.3 R — (1) A firm must support retail customer understanding so that its communications: (a) meet the information needs of retail customers; (b) are likely to be understood by retail customers; and (c) equip retail customers to make decisions that are effective, timely and properly informed. (2) A firm must communicate information to retail customers in a way which is clear, fair and not misleading."
- **Screenshot filename:** 2026-07-02_fca-handbook_prin-2a-5_consumer-understanding.png
- **HTML archive filename:** 2026-07-02_fca-handbook_prin-2a-5_consumer-understanding.html
- **Relevance:** Medium (context)
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** Communications that leave customers unable to identify which "Prima" they are dealing with, or how to contact it, are assessed against this outcome.

LEG-08 — Consumer Duty: consumer support outcome (PRIN 2A.6.2R)

- **ID:** LEG-08
- **Category:** E (context for contact-difficulty findings by other agents)
- **Source/platform:** FCA Handbook
- **URL:** <https://www.handbook.fca.org.uk/handbook/PRIN/2A/6.html>
- **Page title:** FCA Handbook - PRIN 2A.6 Consumer Duty: retail customer outcome on consumer support

- **Search query used:** direct citation
- **Date/time accessed (UTC):** 2026-07-02 01:35
- **Exact quote/snippet:** "PRIN 2A.6.2 R — A firm must design and deliver support to retail customers such that it: (1) meets the needs of retail customers, including those with characteristics of vulnerability; (2) ensures that retail customers can use their product as reasonably anticipated; ..." (rule continues; see archive). PRIN 2A.6.1R confirms the section applies to firms "interacting directly with, and providing support to, retail customers, such as through its customer services functions and including where the firm outsources its interactions with retail customers to a third party".
- **Screenshot filename:** 2026-07-02_fca-handbook_prin-2a-6_consumer-support.png
- **HTML archive filename:** 2026-07-02_fca-handbook_prin-2a-6_consumer-support.html
- **Relevance:** High (context)
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** This is the rule under which "cannot contact my insurer" evidence (Categories E/F/H found by other agents) becomes regulatorily material: being reachable through channels customers can find is part of the consumer-support outcome.

LEG-09 — PS22/9: A new Consumer Duty (policy statement making PRIN 2A)

- **ID:** LEG-09
- **Category:** M (regulatory context)
- **Source/platform:** FCA (fca.org.uk)
- **URL:** <https://www.fca.org.uk/publications/policy-statements/ps22-9-new-consumer-duty>
- **Page title:** PS22/9: A new Consumer Duty | FCA
- **Search query used:** direct citation
- **Date/time accessed (UTC):** 2026-07-02 01:37
- **Exact quote/snippet:** Page confirms "PS22/9: A new Consumer Duty" as the FCA policy statement introducing the Duty (feedback to CP21/36; final rules PRIN 2A; implementation 31 July 2023 for open products, 31 July 2024 for closed products — see the PDF linked from the page).
- **Screenshot filename:** 2026-07-02_fca_ps22-9_consumer-duty-page.png
- **HTML archive filename:** 2026-07-02_fca_ps22-9_consumer-duty-page.html
- **Relevance:** Low (context anchor for LEG-06 to LEG-08)
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** Establishes provenance and in-force dates of PRIN 2A. PS22/9 also explains that Principle 12 applies in place of Principles 6 and 7 where the Duty applies.

LEG-10 — DISP 1.2.1R: consumer awareness / complaints signposting

- **ID:** LEG-10
- **Category:** G (context for complaint-routing findings)
- **Source/platform:** FCA Handbook
- **URL:** <https://www.handbook.fca.org.uk/handbook/DISP/1/2.html>
- **Page title:** FCA Handbook - DISP 1.2 Consumer awareness rules
- **Search query used:** direct citation
- **Date/time accessed (UTC):** 2026-07-02 01:36

- **Exact quote/snippet:** "DISP 1.2.1 R — To aid consumer awareness of the protections offered by the provisions in this chapter, respondents must: (1) publish appropriate information regarding their internal procedures for the reasonable and prompt handling of complaints; (2) refer eligible complainants to the availability of this information ..."
- **Screenshot filename:** 2026-07-02_fca-handbook_disp-1-2_consumer-awareness.png
- **HTML archive filename:** 2026-07-02_fca-handbook_disp-1-2_consumer-awareness.html
- **Relevance:** Medium (context)
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** Firms must make the correct complaints route findable. If public sources point complainants at the wrong "Prima", the effectiveness of this signposting is undermined for both firms.

LEG-11 — DISP 1.6.2R: 8-week final response with FOS signposting

- **ID:** LEG-11
- **Category:** G (context)
- **Source/platform:** FCA Handbook
- **URL:** <https://www.handbook.fca.org.uk/handbook/DISP/1/6.html>
- **Page title:** FCA Handbook - DISP 1.6 Complaints time limit rules
- **Search query used:** direct citation
- **Date/time accessed (UTC):** 2026-07-02 01:36
- **Exact quote/snippet:** "DISP 1.6.2 R — Subject to DISP 1.6.2AR, the respondent must, by the end of eight weeks after its receipt of the complaint, send the complainant: (1) a 'final response' ... which: ... (d) encloses a copy of the Financial Ombudsman Service's standard explanatory leaflet; (da) provides the website address of the Financial Ombudsman Service; (e) informs the complainant that if he remains dissatisfied with the respondent's response, he may now refer his complaint to the Financial Ombudsman Service ..."
- **Screenshot filename:** 2026-07-02_fca-handbook_disp-1-6_final-response.png
- **HTML archive filename:** 2026-07-02_fca-handbook_disp-1-6_final-response.html
- **Relevance:** Medium (context)
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** The DISP clock runs from receipt by the correct respondent. A complaint delivered to the wrong Prima does not start the right firm's 8-week clock, and FOS referral rights (and the DISP 2.8 time limits, e.g. six months from the final response) hinge on responses from the correct respondent. FOS considers complaints against a specific respondent firm, so misrouting delays or misdirects access to the ombudsman.

LEG-12 — DISP 1.7.1R–1.7.2R: complaints-forwarding rules (wrong-firm complaints)

- **ID:** LEG-12
- **Category:** G (context)
- **Source/platform:** FCA Handbook
- **URL:** <https://www.handbook.fca.org.uk/handbook/DISP/1/7.html>
- **Page title:** FCA Handbook - DISP 1.7 Complaints forwarding rules
- **Search query used:** direct citation
- **Date/time accessed (UTC):** 2026-07-02 01:36

- **Exact quote/snippet:** "DISP 1.7.1 R — A respondent that has reasonable grounds to be satisfied that another respondent may be solely or jointly responsible for the matter alleged in a complaint may forward the complaint, or the relevant part of it, in writing to that other respondent, provided it: (1) does so promptly; (2) informs the complainant promptly in a final response of why the complaint has been forwarded by it to the other respondent, and of the other respondent's contact details; ..." "DISP 1.7.2 R — When a respondent receives a complaint that has been forwarded to it under DISP 1.7.1 R, the complaint is treated for the purposes of DISP as if made directly to that [respondent]..."
- **Screenshot filename:** 2026-07-02_fca-handbook_disp-1-7_complaints-forwarding.png
- **HTML archive filename:** 2026-07-02_fca-handbook_disp-1-7_complaints-forwarding.html
- **Relevance:** High (context)
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** This is the rule directly engaged when customers of one Prima complain to the other Prima: the receiving firm bears a prompt-forwarding and customer-notification workload it did not create. It gives an objective, rule-based reason why persistent misdirected complaints are a material burden on the receiving (wrong) firm as well as a detriment to the complainant.

LEG-13 — ICO guidance: personal data breaches (UK GDPR Art. 4(12); Art. 5(1)(f))

- **ID:** LEG-13
- **Category:** M (data-protection context)
- **Source/platform:** Information Commissioner's Office (ico.org.uk)
- **URL:** <https://ico.org.uk/for-organisations/report-a-breach/personal-data-breach/personal-data-breaches-a-guide/>
- **Page title:** Personal data breaches: a guide | ICO
- **Search query used:** direct citation
- **Date/time accessed (UTC):** 2026-07-02 01:37
- **Exact quote/snippet:** "What is a personal data breach? A personal data breach means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, personal data."
- **Screenshot filename:** 2026-07-02_ico_personal-data-breaches-guide.png
- **HTML archive filename:** 2026-07-02_ico_personal-data-breaches-guide.html
- **Relevance:** Medium (context)
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** Kept deliberately narrow. A customer who is misled into emailing/calling the wrong firm may volunteer policy documents, claims details, health information or payment data to an unintended recipient. That is not automatically a "breach" by either firm (the disclosure originates with the customer), but: (i) the receiving firm becomes holder of personal data it has no lawful business need for and must handle/erase it consistently with UK GDPR Art. 5 (including 5(1)(f) integrity and confidentiality); (ii) if a firm's own misleading communications cause misdirection, the causal chain is relevant to accountability; and (iii) ICO guidance requires breach risk-assessment where disclosures to wrong recipients occur. This materially supports why misdirected personal data matters; it does not evidence any breach by either Prima.

LEG-14 — Trade Marks Act 1994, s.10 (infringement; likelihood of confusion)

- **ID:** LEG-14
- **Category:** M (legal context)
- **Source/platform:** legislation.gov.uk
- **URL:** <https://www.legislation.gov.uk/ukpga/1994/26/section/10>
- **Page title:** Trade Marks Act 1994 (s.10)
- **Search query used:** direct citation
- **Date/time accessed (UTC):** 2026-07-02 01:37
- **Exact quote/snippet:** "10 Infringement of registered trade mark. (1) A person infringes a registered trade mark if he uses in the course of trade a sign which is identical with the trade mark in relation to goods or services which are identical with those for which it is registered. (2) A person infringes a registered trade mark if he uses in the course of trade a sign where because— (a) the sign is identical with the trade mark and is used in relation to goods or services similar to those for which the trade mark is registered, or (b) the sign is similar to the trade mark and is used in relation to goods or services identical with or similar to those for which the trade mark is registered, there exists a likelihood of confusion on the part of the public, which includes the likelihood of association with the trade mark."
- **Screenshot filename:** 2026-07-02_legislation_tma1994-s10_infringement.png
- **HTML archive filename:** 2026-07-02_legislation_tma1994-s10_infringement.html
- **Relevance:** Medium (context)
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** Cited only to contextualise why documented real-world confusion evidence is legally significant: "likelihood of confusion" under s.10(2) is the statutory test, and evidence of actual confusion is probative of it. Note s.11(3) TMA (not captured) protects earlier local unregistered rights; who can rely on what is a matter for lawyers.

LEG-15 — Passing off: the "classical trinity" (Reckitt & Colman v Borden [1990] UKHL 12)

- **ID:** LEG-15
- **Category:** M (legal context)
- **Source/platform:** BAILII (bailii.org)
- **URL:** <https://www.bailii.org/uk/cases/UKHL/1990/12.html>
- **Page title:** Reckitt and Colman Products Ltd v Borden Inc & Ors [1990] UKHL 12 (08 February 1990)
- **Search query used:** direct citation
- **Date/time accessed (UTC):** 2026-07-02 01:43
- **Exact quote/snippet** (Lord Oliver): "The law of passing off can be summarised in one short general proposition - no man may pass off his goods as those of another. More specifically ... These are three in number. First, he must establish a goodwill or reputation attached to the goods or services which he supplies ... Secondly, he must demonstrate a misrepresentation by the defendant to the public (whether or not intentional) leading or likely to lead the public to believe that goods or services offered by him are the goods or services of the plaintiff..." (third element: damage — see archived judgment).
- **Screenshot filename:** 2026-07-02_bailii_reckitt-v-borden_passing-off.png
- **HTML archive filename:** 2026-07-02_bailii_reckitt-v-borden_passing-off.html
- **Relevance:** Medium (context)

- **Direct or indirect evidence:** Indirect (context)
- **Notes:** Establishes the three elements (goodwill, misrepresentation, damage) that any passing-off analysis would apply to the evidence pack. Misrepresentation need not be intentional. Context only; no view is expressed on the merits.

LEG-16 — UK trade mark register: "hello prima" / "HELLO PRIMA" / "prima +" / "PRIMA+" owned by Prima Assicurazioni S.p.A. (class 36, filed 05/07/2021)

- **ID:** LEG-16
- **Category:** D (context — registered-rights chronology)
- **Source/platform:** TMview (tmdn.org — official EUIPN search tool carrying UKIPO-supplied data; used because trademarks.ipo.gov.uk was bot-blocked)
- **URL:** <https://www.tmdn.org/tmview/#!/tmview/results?page=1&pageSize=30&criteria=C&basicSearch=prima&offices=GB&niceClass=36> ; detail: <https://www.tmdn.org/tmview/#!/tmview/detail/GB500000003664417> and <https://www.tmdn.org/tmview/#!/tmview/detail/GB500000003664425>
- **Page title:** TMView (results and detail pages)
- **Search query used:** trade mark name contains "prima", office GB, Nice class 36 (74 results)
- **Date/time accessed (UTC):** 2026-07-02 01:39–01:42
- **Exact quote/snippet:** Results list shows, among 74 GB class-36 hits: "prima + — 05/07/2021 — 36 — Registered — UK00003664425 — PRIMA ASSICURAZIONI S.P.A."; "hello prima — 05/07/2021 — 36 — Registered — UK00003664417 — PRIMA ASSICURAZIONI S.P.A."; "HELLO PRIMA — 05/07/2021 — 36 — Registered — UK00003664422 — PRIMA ASSICURAZIONI S.P.A."; "PRIMA+ — 05/07/2021 — 36 — Registered — UK00003664427 — PRIMA ASSICURAZIONI S.P.A.". Detail for UK00003664417 ("hello prima"): "Trade mark status: Registered ... Application date 05/07/2021; Registration date 05/11/2021; Expiry date 05/07/2031 ... Trade mark type: Word ... Nice classification 36 ... Goods and Services: 36 — Insurance services related to motor vehicles. Owner: PRIMA ASSICURAZIONI S.P.A., Piazzale Loreto 17, Milano(MI), 20131 (IT). Representative: Appleyard Lees IP LLP (Halifax)." Detail for UK00003664425 ("prima +"): word mark, registered 19/11/2021, expiry 05/07/2031, class 36, same owner. Older plain "PRIMA" word marks in class 36 (Grant Thornton UK LLP UK00002102530; Prima Regulated Markets Limited UK00003148839) are shown as **Expired**; live "PRIMA"-formative marks of PRIMAGAZ (UK00918024541 etc.) cover unrelated goods plus class 36 and belong to a gas company.
- **Screenshot filename:** 2026-07-02_tmview_prima-gb-class36_results-p1.png; -p2.png; -p3.png; 2026-07-02_tmview_uk00003664417_hello-prima_detail.png; 2026-07-02_tmview_uk00003664425_prima-plus_detail.png
- **HTML archive filename:** 2026-07-02_tmview_prima-gb-class36_results-p1.html; -p2.html; -p3.html; 2026-07-02_tmview_uk00003664417_hello-prima_detail.html; 2026-07-02_tmview_uk00003664425_prima-plus_detail.html
- **Relevance:** High (context)
- **Direct or indirect evidence:** Indirect (context)
- **Notes:** The insurer group's registered UK rights are in "hello prima"/"HELLO PRIMA"/"prima +"/"PRIMA+" (not the bare word "PRIMA" so far as visible in these results), filed 05/07/2021 for "insurance services related to motor vehicles". The broker's recorded use of "Prima Insurance Brokers" (17 May 2019, LEG-02) pre-dates those filings. TMview data "does not constitute official registers" (site caveat); verification against trademarks.ipo.gov.uk is recommended when access is possible.

LEG-17 — No "Prima Insurance" trade mark; no marks found for the broker

- **ID:** LEG-17
- **Category:** D (context) / negative finding
- **Source/platform:** TMview (GB office data)
- **URL:** <https://www.tmdn.org/tmview/#!/tmview/results?page=1&pageSize=30&criteria=C&basicSearch=prima%20insurance&offices=GB>
- **Page title:** TMView
- **Search query used:** trade mark name contains "prima insurance", office GB (all classes)
- **Date/time accessed (UTC):** 2026-07-02 01:42
- **Exact quote/snippet:** "No rows found"
- **Screenshot filename:** 2026-07-02_tmview_prima-insurance-gb_results.png
- **HTML archive filename:** 2026-07-02_tmview_prima-insurance-gb_results.html
- **Relevance:** Medium (context)
- **Direct or indirect evidence:** Indirect (context; negative)
- **Notes:** No UK application/registration containing "prima insurance" exists, and within the 74 "prima" class-36 results no mark is owned by Prima Financial Services Ltd or any Prestwich/Manchester "Prima" entity. Consistent with the broker holding only unregistered (passing-off) rights in its names; and with the insurer holding registered rights only in the "hello prima"/"prima +" forms. No conclusion is drawn on the legal position.

Sources checked with no relevant results

- TMview GB class-36 "prima" results pages 2 and 3 (results 31–74): only third-party marks ("Primary...", "PrimaryBid", "PRIMARK ICON", "PRIMASSURE" (expired, Primassure Limited), bank/health marks, etc.) — no further marks owned by either party. Screenshots -p2/-p3 preserved.
- TMview search "prima insurance" (GB, all classes): "No rows found" (LEG-17).
- FCA register search for FRN 842275 and 1031191 returned exactly one firm each; no other "Prima" firm records were pulled beyond scope (a broad "Prima" name sweep of the register was not in this agent's scope).
- The FCA register entries for both firms show no disciplinary/enforcement notices; the 1031191 "Restrictions" flag resolves to standard permission requirements only.
- Neither FCA register entry displays 0330 088 1135; that number appears on neither firm's register record.

Access blockers

- **trademarks.ipo.gov.uk (UKIPO register):** blocked by Cloudflare Turnstile ("Just a moment..." challenge; curl returns HTTP 403; headless Chromium did not clear the challenge after extended waits). The UKIPO register itself could therefore not be screenshotted. Workaround used: TMview (www.tmdn.org), the EUIPN/EUIPO official search tool whose GB records are supplied by UKIPO; its caveat that it "does not constitute official registers" is noted on the screenshots. Direct UKIPO verification (e.g. UK00003664417) is recommended from a normal browser.
- **FCA Handbook and FCA register pages** are JavaScript-rendered; plain HTTP fetch returns a shell page. All content here was captured via the headless-browser helper and quoted from the rendered

HTML archives.

- A cookie-consent modal partially overlays the two initial FCA register search screenshots (2026-07-02_fca-register_search-842275_results.png / ...-1031191...); the firm-page and "expanded" screenshots were taken after dismissing it and are clean.
- FOS decision database and FCA enforcement/warning-notice searches were not in this agent's scope (primary-rules context only).